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This is a fee motion in a Song-Beverly case. The motion was originally filed in March. The court continued the matter to see if the parties would have a real conversation about the rates and hours. The court had assumed that lead counsel would participate, but instead, lead counsel was very busy and appointed others. As of the subsequent hearing, there had been no discussion. As just stated, lead defense counsel was too busy.

And the appointed defense counsel included some with no involvement in the case at all. Plaintiff's counsel stated a concern that although the counsel on the other side would have the technical authority to cut a deal, there would be no practical authority really to examine the time entries and have a meaningful give and take about the fees, and therefore refused to meet. The court then told the parties to try again—this time with lead counsel. The parties apparently did have a voice to voice discussion, but the court understands that no agreement was reached, and so we are back.

The court notes that plaintiff seeks \$18,000 in lodestar fees plus \$4000 for the original motion, hardly a king's ransom. Defendant opposed the motion stating that the award was way too big and that the motion was untimely because it was brought long after the settlement was inked. The active litigation lasted about 9 months according to the defense, and 44 hours over a 9 month period is not reasonable according to the defense. Further, the defense notes that the court dismissed the merits of the case on June 27, 2025, but without prejudice to a fee motion. By waiting 9 more months to file the motion, the defense says plaintiff is being unreasonable, and that the fee motion had to be filed within 60 days of the dismissal and therefore

untimely. Further, the defense notes that there were no depositions, experts, or motions, although there was standard written discovery. Finally, relying on the Real Rate Report for 2023, the defense also concluded that the \$500 hourly rate was too high. The bottom line seemed to be that the actual lodestar number is \$1462.30. In reply, plaintiff argues that the settlement was only conditional, and as such, the time periods to file an appeal (which is where the 60 days from the defense comes from) had not even started. Plaintiff also contends that the 2023 report is outdated, and that at a minimum, the defense should use the 2025 report assuming that the Real Rate Report is useful at all. A note on that. The court has no idea how the numbers in the Real Rate Report were derived. All defendant says is that it should be used and that some other trial courts in unpublished cases have used it. That is not evidence.

The court has gone through the time entries. The court agrees that in some respects, some of the time did not seem to be efficient, but the court also notes that the defense made no effort to identify any particular entry that it felt was improper. Nor can the court say, based on its experience, that \$500/hour is unreasonably high. On the other side of the coin, plaintiff's only evidence as to the reasonableness of the rate is that it has been awarded in the past. However, plaintiff has not provided any information of a more useful kind. For example, plaintiff has not given the court a list of contested awards issued by courts over the last two years in Song-Beverly cases. The court has some concern about cherry-picking. But that said, plaintiff's rates are consistent with the Laffey Matrix, which has been used by a number of courts. Finally, the court believes that the notion that plaintiff should have spent not more than \$1462.30 on the case, which is what the defense suggests, is not reasonable. It lends credence to what the court has been hearing from the plaintiff's bar: that the opposition to these motions is brought in bad faith in an effort to put plaintiff's legitimate fees at risk. Even at the rates defendant suggests, this is about 7 hours or less of time. The court is aware that some of the time was while there was a debate on forum. The court agrees with the defense that fees incurred to defend the forum are not recoverable, that does not mean that none of the work is recoverable. Much of it directly translates.

In short, the court disagrees with the defense that the motion is time barred. And the court does not believe that the defense has demonstrated that the rates are unreasonably high or that the time, generally speaking, is unreasonable. What the court does find is that the defendant's suggestion that the case should have taken no more than a couple of hours is unreasonable. The court has gone through the billing statements. The court's views are as follows: 8/21/23—approved; 8/28—approved; 8/29—approved as to the first two entries, but not the third; 9/7/23—approved; 9/14—approved; 9/29—approved; 10/2—disapproved; 10/11—approved for .5 hours for all entries combined in part because a more junior person could have done this; 12/8—approved; 12/27—disapproved for the first entry, approved for the second entry; 1/3/24—approved; 1/8—approved for .5 hours for all entries; 1/15—approved; 4/4—approved at .1 for the first entry and approved in full as to the second entry; 4/22—approved; 5/7—approved for .4 hours combined; 5/24—approved; 6/6—approved; 6/7—approved; 9/3—approved; 9/4—approved; 9/5—approved; 10/4—approved; 10/29—approved; 10/30—approved; 11/8—approved at .6; 11/14—approved; 11/15—approved at 1.6 hours; 11/20—approved at .3 hours for both entries; 12/19—approved; 12/27—approved; 1/29/25—approved at .1 hours; 1/30—approved; 1/31—approved; 2/20—approved; 2/26—disapproved; 3/24—approved; 3/31—approved; 6/30—disapproved; 9/25—approved; 10/6 disapproved; 12/5—approved; 12/12 approved at .2 hours for the entries; 3/10—approved. The court notes that while some of these numbers could go one way or the other, the court has tried to find what it believes are reasonable.

The court will GRANT the motion in the lodestar amount as reflected above. However, because the opposition seeks a number that is patently unreasonable, the court finds that it placed plaintiff's legitimate fee at undue risk and in was made in bad faith. The court believes that this added risk justifies—on that basis alone—an enhancement to the fee award. The court notes that it generally does not enhance fees in a Song-Beverly case because the likelihood of success is so great. But where the defense, through actions such as this, puts a legitimate fee at risk, an enhancement is appropriate. Therefore, the court will award a 25% enhancement to account for the additional risk that plaintiff's counsel undertook in recovering its fee. Plaintiff will prepare the order.